



CHAPTER lxxxiii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Birstal Bournemouth Huddersfield Kettering Joint Hospital District South Staffordshire Joint Smallpox Hospital District and Worcester.

A.D. 1925.

[7th August 1925.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875 :

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 7) Act 1925.

Short title.

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Provisional Orders Confirmation (No. 7) Act, 1925.

A.D. 1925.

SCHEDULE.

Birstal Order.

URBAN DISTRICT OF BIRSTAL.

*Provisional Order for partially repealing the Birstal
Local Board Act 1872.*

WHEREAS the Urban District Council of Birstal (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Birstal (hereinafter referred to as "the District");

And whereas there are in force in the District the unrepealed provisions of the Birstal Local Board Act 1872 (hereinafter referred to as "the Local Act");

And whereas by Section 66 of the Local Act and the Fourth Schedule thereto certain building regulations are prescribed for the District;

And whereas the Council have made application to the Minister of Health for the issue of a Provisional Order partially to repeal the Local Act in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders that the following provisions shall have effect that is to say :—

Date of
operation.

1. This Order shall come into operation on the First day of January One thousand nine hundred and twenty-six or on such earlier date as new byelaws of the Council with respect to new streets and buildings shall come into force.

Partial
repeal of
Local Act.
Short title.

2. Section 66 of and the Fourth Schedule to the Local Act are hereby repealed.

3. This Order may be cited as the Birstal Order 1925.

Given under the Official Seal of the Minister of Health this
Twenty-eighth day of April One thousand nine hundred
and twenty-five.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

COUNTY BOROUGH OF BOURNEMOUTH.

A.D. 1925.

*Provisional Order for altering the Bournemouth
Corporation Act 1904.*

*Bournemouth
Order.*

WHEREAS the Borough of Bournemouth is an urban district of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Bournemouth Corporation Act 1904 (hereinafter referred to as "the Local Act") are in force in the District;

4 Edw. 7.
c. cliii.

And whereas Sections 44 and 45 of the Local Act make provision for the borrowing of money by mortgage and as to the form of mortgage to be used;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to alter the Local Act in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

1. Notwithstanding the provisions of any local Act or Order in force in the Borough of Bournemouth :—

Power to
use one
form of
mortgage
for all
purposes.

(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this Article :

(2) Every mortgage granted under this Article shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of repayment and shall be sealed with the common seal of the Corporation and may be made in the form contained in the Schedule to this Order or to the like effect :

(3) All mortgages granted under this Article shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at

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any time after the date of the first grant of a mortgage under this Order :

- (4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this Article shall be and the same are by virtue of this Order charged indifferently upon all the revenues of the Corporation :
- (5) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this Article and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this Order had not been made :
- (6) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this Article and interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable if this Order had not been made :
- (7) There shall be kept at the offices of the Corporation a register of the mortgages granted under this Article and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said offices without fee or reward and the Town Clerk or other person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds :
- (8) Any mortgagee or other person entitled to any mortgage granted under this Article may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Schedule to this Order or to the like effect :
- (9) There shall be kept at the offices of the Corporation a register of the transfers of mortgages granted under this Article and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the Town Clerk who shall on payment of

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a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee :

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—
*Bournemouth
Order.*

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby :

(11) If the Town Clerk wilfully neglects or refuses to make in the register any entry by this Article required to be made he shall be liable to a penalty not exceeding twenty pounds :

(12) In this Article :—

(a) the expression “statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ; and

(b) the expression “revenues of the Corporation” includes revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation.

2. This Order may be cited as the Bournemouth Order Short title.
1925.

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A.D. 1925.

The SCHEDULE above referred to.

*Bournemouth
Order.*

FORM OF MORTGAGE.

By virtue of the Bournemouth Order 1925 as confirmed by Parliament and of other their powers in that behalf them enabling the Mayor Aldermen and Burgesses of the Borough of Bournemouth acting by the Council (hereinafter referred to as "the Corporation") in consideration of the sum of pounds paid to the treasurer of the Borough by (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the Bournemouth Order 1925 defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the day of and the day of in each year.

And it is hereby agreed that the said principal sum shall be repayable at the option of either party at the offices of the Corporation on the day of one thousand nine hundred and but if not required by either party to be repaid on that date shall be repaid on the expiration of six calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation:

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned in an endorsement to be made hereon under the hand of the mayor and town clerk of the Borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall

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operate and take effect as though they had been originally A.D. 1925.
inserted herein.

—
Bournemouth
Order.

In witness whereof the Corporation have caused their
common seal to be hereunto affixed this
day of one thousand nine hundred
and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named
consenting the within-mentioned time for repayment of the
within-mentioned principal sum is hereby extended to the
day of one thousand nine hundred
and [and the interest to be paid thereon on
and from the day of one thousand
nine hundred and is hereby declared to
be at the rate of per centum per annum.]

Dated this day of one
thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within named] [of
] in consideration of the sum of
pounds paid to me by of
(hereinafter referred to as "the transferee") do hereby
transfer to the transferee [his] executors administrators and
assigns [the within-written security] [the mortgage number
of the revenues of the Mayor Aldermen
and Burgesses of the Borough of Bournemouth acting by the
Council bearing date the day of]
and all my right and interest under the same subject to
the several conditions on which I hold the same at the
time of the execution hereof and I the transferee for
myself my executors administrators and assigns do hereby
agree to take the said mortgage security subject to the same
conditions.

Dated this day of one
thousand nine hundred and

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Bournemouth
Order.

Given under the Official Seal of the Minister of Health
this Eleventh day of May One thousand nine hundred
and twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

BOROUGH OF HUDDERSFIELD.

Huddersfield
Order.

Provisional Order for altering the Huddersfield Corporation
Act 1906.

WHEREAS the Borough of Huddersfield (hereinafter referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875 ;

And whereas there are in force in the Borough the unrepealed provisions of the Huddersfield Corporation Act 1906 (hereinafter referred to as "the Local Act") as amended by a Provisional Order confirmed by Parliament and entitled the Huddersfield Order 1912 ;

And whereas by Section 11 of the Local Act provision was made (a) for the appointment at a meeting of traders summoned thereunder of representatives for the purposes therein mentioned and (b) for the making by the Corporation with the concurrence of the said traders' representatives of general regulations providing (inter alia) for the payment of reasonable charges in respect of the reception and disposal of trade refuse where the removal of solid matter and grease therefrom or the regulation of the flow of such trade refuse is not effected ;

And whereas the Corporation with the concurrence of the said traders' representatives made certain general regulations prescribing (inter alia) the charges to be made as aforesaid for the reception and disposal of trade refuse but by reason of the increase in the volume of such trade refuse and in the cost of dealing with the same such charges are now inadequate for the purpose ;

And whereas by Section 13 of the Local Act it was provided that any question arising under Part II. thereof or under any regulations made thereunder should if the parties so agreed be referred to the Local Government Board for determination

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otherwise than as arbitrators or if they did not so agree then to arbitration under the provisions of the Arbitration Act 1889 ;

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Order.

And whereas the Corporation have applied to the Minister of Health for the issue of a Provisional Order to alter the Local Act in manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered in manner following :—

1. Expressions used in this Order shall unless the contrary intention appears have the same respective meanings as in the Local Act. Interpretation.

2.—(1) Notwithstanding the provisions of Section 11 of the Local Act and the regulations made thereunder or of any agreement made pursuant to the said regulations the Corporation shall be deemed to have been entitled from the thirty-first day of December One thousand nine hundred and twenty-four and shall be entitled until the thirty-first day of December One thousand nine hundred and twenty-nine to make a charge at the rate of twopence for each 1,000 gallons of trade refuse (including surface and other waters) received and disposed of by them under the provisions of the Local Act where the trader is unable or unwilling to effect the exclusion of surface and other waters or the removal of solid matter and grease required by the said general regulations made under subsection (2) (a) (b) and (c) of Section 11 or the regulation of flow required by the said regulations made under subsection (2) (d) of Section 11 and the Corporation shall be under no obligation to refund any part of any sums received by them under this provision. Payment to, be made for discharge of trade refuse into Corporation's sewers.

(2) Any reference to the said regulations in any agreement made pursuant thereto shall be construed as a reference to the said regulations as altered by this Order.

3.—(1) For the purposes of the Local Act as amended by this Order a meeting of the traders shall be summoned by not less than seven clear days notice by advertisement in one or more newspapers circulating in the Borough and such meeting shall be convened by the Chairman for the time being of the Association within two months from the passing of the Act confirming this Provisional Order or failing this shall be convened by the Mayor for the time being of the Borough. Such meeting shall act by a majority of the traders present and shall elect a Committee consisting of not less than five nor more than ten traders' representatives, who shall remain in office until the thirty-first December One thousand nine hundred and twenty-six. Meeting of traders for election of Committee.

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Order.

(2) A meeting of traders shall be convened in like manner by the said Chairman in December 1926 and in every succeeding month of December (or failing this by the said Mayor) for the purpose of electing a similar Committee of Representatives who shall remain in office for the year following the December appointed for their election.

(3) Within ten days after the appointment of any such Committee the name address and occupation of every member thereof shall be communicated in writing by the said Chairman to the Town Clerk for the time being of the Borough.

(4) The said Committee shall be called together from time to time as may be necessary by the said Chairman or by the said Mayor and shall act by a majority of those present.

Amendment
of general
regulations
made under
Local Act.

4.—(1) The general regulations made by the Corporation under Section 11 of the Local Act may subject to the provisions of Article 2 of this Order from time to time be rescinded or amended by the Corporation with the concurrence of the Committee appointed in pursuance of this Order.

(2) Notice of any such rescission or amendment of the general regulations shall be given by the Corporation to the same persons and in the same manner as is required by the Local Act on the making of such general regulations and the rescission or amendment shall come into operation in the case of a trader on the day following the date of the service of such notice on him and subsection (9) of Section 11 of the Local Act shall apply in like manner as if such rescission or amendment were general regulations made under the Local Act.

(3) In the event of the Corporation and the said Committee failing to agree on a rescission or amendment of the general regulations proposed by the Corporation or the Committee the difference shall be settled in manner provided by Section 13 of the Local Act as amended by this Order.

Minor
amendments
and repeals.

5.—(1) Section 13 (Reference of questions in dispute) of the Local Act shall be amended by the deletion therefrom of the words "if the parties so agree" and "or if they do not so agree" then to arbitration under the provisions of the Arbitration Act "1889" by the substitution of "Minister of Health" and "Minister" for "Local Government Board" and "Board" respectively and by the substitution of the words "under Sections 11 12 16 and 20 of this Act" for the words "under this Part of this Act."

(2) Subsection (2) of Section 11 of the Local Act shall have effect and shall be deemed always to have had effect as if the words "(except so far as permitted by the Corporation)" were therein inserted after the word "exclusion."

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(3) Subsection (3) of Section 11 of the Local Act shall have effect and shall be deemed always to have had effect as if the words "or unwilling" were inserted after the word "unable" therein. A.D. 1925.
—
Huddersfield Order.

(4) Subsection (7) (Meeting of traders) of Section 11 of the Local Act is hereby repealed.

6. This Order may be cited as the Huddersfield Order Short title.
1925.

Given under the Official Seal of the Minister of Health
this Twenty-ninth day of April One thousand nine
hundred and twenty-five.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

KETTERING JOINT HOSPITAL DISTRICT.

Provisional Order for amending the Kettering Joint Hospital Order 1895. *Kettering Order.*

WHEREAS by the Kettering Joint Hospital Order 1895 (hereinafter referred to as "the Order of 1895") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1895 the Urban and Rural Districts of Kettering were formed into a United District called the Kettering Joint Hospital District under the management of the Kettering Joint Hospital Board (hereinafter referred to as "the Joint Board");

And whereas it is expedient that such District should be extended so as to include the Urban Districts of Desborough and Rothwell and the Rural District of Oxendon;

And whereas a part of the former Rural District of Kettering has recently been formed into the Urban District of Burton Latimer;

And whereas the Joint Board have made application to the Minister of Health for the issue of a Provisional Order to amend the Order of 1895 in manner hereinafter appearing:

Now therefore the Minister of Health in pursuance of his powers under Section 297 of the Public Health Act 1875 and

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*Kettering
Order.*

Short title
and com-
mencement.

Extension of
United
District.

Reconstitu-
tion of Joint
Board.

Election of
members and
first meeting
of reconsti-
tuted Joint
Board.

Amendments
of Articles
XI, XIV, and
XV. of Order
of 1895.

Cost of ex-
tending
hospitals of
Joint Board.

of all other powers enabling him in that behalf hereby orders that the Order of 1895 shall be amended as follows:—

1. This Order may be cited as the Kettering Joint Hospital Order 1925 and shall come into operation on the first day of October One thousand nine hundred and twenty-five.

2. The Kettering Joint Hospital District shall be extended and shall comprise the constituent districts named in column 1 of the Schedule hereto and references in the Order of 1895 to the constituent districts and constituent authorities shall be construed as references to those districts and to the authorities named in column 2 of the said Schedule.

3. The Joint Board shall consist of one ex-officio member who shall be the person named in column 3 of the said Schedule and eighteen elective members of whom each constituent authority shall elect from among its own members the number specified opposite to its name in column 4 of the said Schedule.

4.—(1) Eighteen elective members of the Joint Board shall be elected by the constituent authorities before the first day of October One thousand nine hundred and twenty-five (or within such extended period as the Minister of Health may allow) and Article VIII. of the Order of 1895 shall apply to such elections.

(2) The time and place of holding the first meeting of the Joint Board as reconstituted by this Order shall be fixed by the Joint Board as at present constituted (or in default of such appointment by the Minister of Health) and at such meeting all the members of the reconstituted Joint Board shall come into office and immediately prior thereto all the members of the existing Board shall go out of office.

5.—(1) In subdivisions (1) and (2) of Article XI. of the Order of 1895 the word “ five ” shall be substituted for the word “ three.”

(2) In Article XIV. of the Order of 1895 the words “ the Guardians of the Poor of the Kettering and Market Harborough Unions or either of them ” shall be substituted for the words “ the Guardians of the Poor of the Kettering Union.”

(3) The reference in Article XV. of the Order of 1895 to Section 132 of the Public Health Act 1875 shall be construed as including a reference to Section 60 of the Public Health Acts Amendment Act 1907.

6. Notwithstanding the provisions of subdivision (1) of Article XIX. of the Order of 1895 there shall be defrayed out of the common fund of the united district seven-twentieths only of the annual or half yearly payments made by the Joint Board by way of repayment of principal and payment of interest in respect of such sums as may be declared by resolution of the Board to have been expended by them out of borrowed moneys—

(a) in connection with the extension alteration or enlargement of the Board's infectious diseases hospital so as

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to furnish accommodation for twenty additional beds and the necessary administrative buildings and offices in connection therewith; and

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Order.

- (b) within five years from the commencement of this Order in connection with the extension alteration or enlargement of the Board's small-pox hospital and the administrative buildings and offices in connection therewith

for the purpose of making provision for the reception of patients from the Desborough and Rothwell Urban Districts and the Oxendon Rural District and the constituent authorities for those districts shall (in addition to their rateable contributions to the common fund) contribute the remaining thirteen-twentieths of the payments above mentioned in shares proportionate to the number of inhabitants in each of those districts to be ascertained in the manner and at the time provided in subdivision (2) of Article XIX.

7. The following provisions of the Order of 1895 are hereby Repealed viz. Articles IV. V. and XVII. and the Schedules.

The SCHEDULE above referred to.

1. Constituent Districts.	2. Constituent Authorities.	3. Ex-officio Member.	4. Elec- tive Mem- bers.
The Urban District of Kettering.	The Urban District Council of Kettering.	The Chairman for the time being of the Urban Dis- trict Council of Kettering.	7
The Urban District of Burton Latimer.	The Urban District Council of Burton Latimer.	- - -	2
The Urban District of Desborough.	The Urban District Council of Desborough.	- - -	2
The Urban District of Rothwell.	The Urban District Council of Rothwell.	- - -	2
The Rural District of Kettering.	The Rural District Council of Kettering.	- - -	3
The Rural District of Oxendon.	The Rural District Council of Oxendon.	- - -	2

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*Kettering
Order.*

Given under the Official Seal of the Minister of Health this
Twenty-eighth day of April One thousand nine hundred
and twenty-five.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

SOUTH STAFFORDSHIRE JOINT SMALL-POX
HOSPITAL DISTRICT.

*South
Staffordshire
Order.*

*Provisional Order for altering certain Orders confirmed by
Parliament.*

WHEREAS by virtue of the South Staffordshire Joint Small-pox Hospital Orders 1903 to 1924 (hereinafter referred to as "the Orders") which were confirmed by Parliament the County Boroughs of Dudley Smethwick and Wolverhampton the Borough of Tamworth and certain Urban and Rural Districts constitute a United District called the South Staffordshire Joint Small-pox Hospital District (hereinafter referred to as "the United District") of which the governing body is the South Staffordshire Joint Small-pox Hospital Board (hereinafter referred to as "the Joint Board");

And whereas it is expedient that the Borough and Districts mentioned in Article 1 of this Order should be included in the United District:

Now therefore the Minister of Health in pursuance of the powers given to him by Section 297 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the Orders shall be altered as follows:—

Extension
of United
District.

1. The United District shall be extended so as to include the Borough of Stafford the Urban Districts of Rugeley and Uttoxeter and the Rural Districts of Gnosall Stafford Tutbury and Uttoxeter and (subject to the provisions of this Order) references in the Orders to Constituent Districts and Constituent Authorities shall be deemed to include the said Borough and Districts and the local authorities thereof respectively.

Future
constitution
of Joint
Board.

2. The number of elective members of the Joint Board shall be increased from thirty-nine to forty-seven and the number of members to be elected by each of the Constituent

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Authorities shall be that set opposite to the name of that Authority in column 3 of the Schedule hereto which shall be substituted for the Schedule referred to in the South Staffordshire Joint Small-pox Hospital Order 1924.

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—
South Staffordshire Order.

3. The provisions of Article XI. of the South Staffordshire Joint Small-pox Hospital Order 1903 shall apply to the first election by each of the new Constituent Authorities referred to in Article 1 hereof of the elective member or members to represent that Constituent Authority on the Joint Board as if the election related to the filling of a vacancy occurring on the date when this Order becomes operative.

Election of elective members by new Constituent Authorities.

4. The Minister of Health upon the application of any of the Constituent Authorities or of the Joint Board may adjust as between the Constituent Authorities or as between the Constituent Authorities and the Joint Board any expense or liability incurred by or attaching to the Joint Board before the commencement of this Order or any expense liability or accounts arising out of incidental to or connected with or affected by the inclusion of the new Constituent Authorities referred to in Article 1 hereof in the United District or any expense liability or accounts in respect of which doubt or difference may arise after this Order becomes operative.

Adjustment.

5. This Order may be cited as the South Staffordshire Joint Small-pox Hospital Order 1925 and the Orders and this Order may be cited together as the South Staffordshire Joint Small-pox Hospital Orders 1903 to 1925.

Short titles.

THE SCHEDULE.

Name of District.	Name of Authority.	Elective Members.
The Borough of Dudley.	The Mayor Aldermen and Burgesses of the Borough of Dudley acting by the Council as the Urban Sanitary Authority for the Borough.	3
The Borough of Smethwick.	The Mayor Aldermen and Burgesses of the Borough of Smethwick acting by the Council as the Urban Sanitary Authority for the Borough.	3

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*South
Staffordshire
Order.*

Name of District.	Name of Authority.	Elective Members.
The Borough of Stafford.	The Mayor Aldermen and Burgesses of the Borough of Stafford acting by the Council as the Urban Sanitary Authority for the Borough.	2
The Borough of Tamworth.	The Mayor Aldermen and Burgesses of the Borough of Tamworth acting by the Council as the Urban Sanitary Authority for the Borough.	1
The Borough of Wolverhampton.	The Mayor Aldermen and Burgesses of the Borough of Wolverhampton acting by the Council as the Urban Sanitary Authority for the Borough.	5
The Urban District of Amblecote.	The Urban District Council of Amblecote.	1
The Urban District of Bilston.	The Urban District Council of Bilston.	2
The Urban District of Brownhills.	The Urban District Council of Brownhills.	1
The Urban District of Cannock.	The Urban District Council of Cannock.	2
The Urban District of Coseley.	The Urban District Council of Coseley.	2
The Urban District of Darlaston.	The Urban District Council of Darlaston.	1
The Urban District of Heath Town.	The Urban District Council of Heath Town.	1
The Urban District of Oldbury.	The Urban District Council of Oldbury.	2
The Urban District of Quarry Bank.	The Urban District Council of Quarry Bank.	1
The Urban District of Rowley Regis.	The Urban District Council of Rowley Regis.	2
The Urban District of Rugeley.	The Urban District Council of Rugeley.	1
The Urban District of Sedgley.	The Urban District Council of Sedgley.	1
The Urban District of Short Heath.	The Urban District Council of Short Heath.	1
The Urban District of Tettenhall.	The Urban District Council of Tettenhall.	1
The Urban District of Tipton.	The Urban District Council of Tipton.	2
The Urban District of Uttoxeter.	The Urban District Council of Uttoxeter.	1
The Urban District of Wednesfield.	The Urban District Council of Wednesfield.	1
The Urban District of Willenhall.	The Urban District Council of Willenhall.	1
The Rural District of Cannock.	The Rural District Council of Cannock.	2
The Rural District of Gnosall.	The Rural District Council of Gnosall.	1
The Rural District of Kingswinford.	The Rural District Council of Kingswinford.	1

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Name of District.	Name of Authority.	Elective Members.
The Rural District of Stafford.	The Rural District Council of Stafford.	1
The Rural District of Tamworth.	The Rural District Council of Tamworth.	2
The Rural District of Tutbury.	The Rural District Council of Tutbury.	1
The Rural District of Uttoxeter.	The Rural District Council of Uttoxeter.	1

Given under the Official Seal of the Minister of Health this
Twelfth day of May One thousand nine hundred and
twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

CITY OF WORCESTER.

*Provisional Order for repealing the Local Act 7 Will. IV.
Cap. lviii. relating to the City of Worcester and for
amending the Worcester Extension Act 1885.*

*Worcester
Order.*

WHEREAS the City of Worcester (hereinafter referred to as "the City") is an urban sanitary district of which the Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the local authority for the purposes of the Public Health Act 1875;

And whereas there are in force in the City the unrepealed provisions of the Worcester Extension Act 1885 and of a local Act passed in the 7th year of the reign of His late Majesty King William the Fourth and intituled "An Act for removing the
" Markets held in the City of Worcester in the County of
" Worcester for the sale of cattle horses sheep and pigs and for
" providing another market place in lieu thereof and for pro-
" viding for the better and more effectual draining the said
" City " (hereinafter respectively referred to as " the Act of 1885 " and " the Act of 1837 ") as altered by certain Provisional Orders confirmed by Parliament which do not affect the subject matter of this Order;

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—
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Order.*

And whereas in pursuance of the Act of 1837 and of the rights and privileges conferred by certain Royal Charters the Corporation have provided a market place and carry on a cattle market undertaking in the City and by Section 24 of the said Act it is provided that the Corporation may take from persons exposing for sale or for show in their cattle market any cattle horses sheep pigs or other live cattle or stock such tolls (not exceeding those specified in Schedule B to the said Act) as may from time to time be fixed by a joint committee appointed by the Corporation and the justices of the County of Worcester in Quarter Sessions assembled;

And whereas by the Act of 1885 provision is made with respect to the exercise of borrowing powers by the creation of Corporation stock the establishment of a loans fund for the payment of dividends on such stock and for the redemption or purchase of the stock and other matters connected therewith and the borrowing of money by the Corporation for the purposes of the said Act;

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order to repeal or amend the Acts of 1837 and 1885 in the manner hereinafter set forth :

Now therefore the Minister of Health in pursuance of the powers given to him by Section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect that is to say :—

Interpreta-
tion.

1. In this Order unless the context otherwise requires :—
 - “ Minister ” means the Minister of Health ;
 - “ County Council ” means the County Council of the administrative county of Worcester ;
 - “ Cattle Market ” means the market place provided by the Corporation under the Act of 1837 and includes all market-houses weighing places and other conveniences for the holding thereof ;
 - “ Prescribed period ” means the period allowed by any statutory borrowing power for the repayment of loans raised thereunder ;
 - “ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertaking or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation ;
 - “ Statutory security ” means any security in which trustees are for the time being by or under any Act of

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Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by Section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

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—
*Worcester
 Order.*

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

2. The Act of 1837 is hereby repealed without prejudice to any act or thing already done thereunder.

Act of 1837
 repealed.

3. Subject to the provisions of this Order—

Provisions of
 Public
 Health Act
 relating to
 markets to
 apply.

(1) The Cattle Market shall be deemed to have been and to be a market held established or provided under the Public Health Act 1875 and may be used for the sale of cattle horses sheep pigs mules asses and goats for the exhibition and sale of agricultural implements and apparatus for the sale of poultry and agricultural produce and for any other purpose for which the same is now used:

(2) The provisions of the Public Health Act 1875 with respect to markets and the enactments incorporated therewith and thereby rendered applicable to markets to be established or regulated in pursuance of the said Act (including the provisions and enactments relating to byelaws with respect to any market belonging to an urban authority) shall extend and apply to the Cattle Market and shall have effect as if in relation to the Cattle Market the Corporation were and had been empowered to do the things or any of the things mentioned in Section 166 of that Act.

4—(1) The Corporation may demand and recover from persons using the Cattle Market such tolls stallages rents and

Market tolls
 &c.,

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charges as may from time to time be fixed by the Joint Committee hereinafter referred to in respect of the matters specified in Part I. of the First Schedule to this Order and by the Corporation in respect of any matters not so specified :

Provided that the tolls stallages rents or charges so fixed in respect of any matters specified in the said schedule shall not exceed the maximum tolls specified in that schedule or such other maximum tolls as the Corporation may with the approval of the Minister substitute therefor.

(2) The Corporation and the County Council shall as soon as may be practicable appoint for the purposes of this Article a Joint Committee consisting of fourteen members of whom half shall be appointed by the Corporation and half by the County Council and such committee shall from time to time fix the tolls stallages and charges to be demanded by the Corporation in respect of matters specified in Part I. of the First Schedule to this Order and the date upon which the same shall become operative :

Provided that no toll stallage or charge so fixed shall be varied by the Joint Committee until it has been in operation for one year :

Provided also that until the first table of tolls stallages and charges fixed by the Joint Committee comes into operation the Corporation may continue to demand and recover such tolls stallages and charges as they are at present demanding.

(3) The Joint Committee in fixing tolls stallages and charges shall endeavour to secure so far as it may be reasonably possible to do so that the Cattle Market undertaking of the Corporation shall be carried on without loss but without profit and the Town Clerk of the City shall send annually to the Clerk to the County Council a copy of the accounts of the said undertaking.

(4) The Corporation and the County Council may by agreement under their respective seals from time to time vary the number of members constituting the Joint Committee and the members of the committee shall be appointed at such times and in such manner and shall hold office for such time as may be fixed by the authority appointing them.

(5) At any meeting of the Joint Committee the chairman shall have a casting vote.

(6) Any expenses of the Joint Committee shall be defrayed by the Corporation as part of the expenses of their Cattle Market undertaking.

(7) For the purpose of arriving at the financial position of the Cattle Market the Corporation may charge a reasonable sum in respect of the services of any of their officers who are employed partly on work for carrying on the Cattle Market and partly on other work for the Corporation.

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5.—(1) The Corporation may let for any period not exceeding five years upon such terms and conditions as they think fit the use of any selling place pens or enclosures in the Cattle Market and the right of selling or holding auction sales of cattle therein or other animals or things authorised to be sold in the market. Provided that any such letting shall not confer on any person to the exclusion of other persons a right to the use of the whole of the Cattle Market or the sole right of selling or holding auction sales therein and any person aggrieved by the action of the Corporation in the exercise of the powers conferred by this Article may appeal to a court of summary jurisdiction who shall have the power to make such order in the matter as they think proper and the Corporation shall be bound by such order.

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—
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Order.*

Letting of
selling places
&c.

(2) On not more than seven days in any year such seven days not to include any regular market day the Corporation may on such terms as they think fit let the whole of the market to any auctioneer or other person desirous of holding a sale or exhibition therein of any animals goods or things authorised to be sold or exhibited in the market.

6.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this Article.

Power to
use one form
of mortgage
for all
purposes.

(2) Every mortgage granted under this Article shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of repayment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule to this Order or to the like effect.

(3) All mortgages granted under this Article shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this Article.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this Article shall be and the same are by virtue of this Order charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this Article and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this Order had not been made.

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Order.*

(6) Nothing in this Article contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this Article and interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this Order had not been made.

(7) There shall be kept at the offices of the Corporation a register of the mortgages granted under this Article and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said offices without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this Article may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the said Second Schedule or to the like effect and shall not contain any recital trust power or provision whatsoever.

(9) There shall be kept at the offices of the Corporation a register of the transfers of mortgages granted under this Article and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this Article required to be made he shall be liable to a penalty not exceeding twenty pounds.

Mode of
payment off
of money
borrowed.

7. The Corporation shall pay off all moneys borrowed or to be borrowed by them on mortgage under any statutory borrowing power either by equal yearly or half-yearly instalments of

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principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing.

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Order.

8.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) the sinking fund shall be formed and maintained either—

Formation
maintenance
and applica-
tion of
sinking fund.

- (a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or
- (b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or at such other rate as the Minister may from time to time approve or direct will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose the investments.

(3) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(4) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the

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A.D. 1925. amount invested if the same were invested at the rate per centum
— per annum on which the annual payments to the fund are based
Worcester any such excess may be applied towards those annual payments.
Order.

(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

9.—(1) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(2) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Minister the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the probable accumulations thereon (in the case of an accumulating sinking fund) will be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Minister may approve.

(4) If in the opinion of the Minister the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will be sufficient to repay the moneys in respect of which it is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the annual payments to the sinking fund until the Minister otherwise directs.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

Transfers
from existing
sinking
funds.

(6) All moneys which at the date of the Act of Parliament confirming this Order are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Order and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this Article.

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10.—(1) Where the Corporation are authorised by any statutory borrowing power to raise moneys for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said moneys either wholly or partially by using for such purpose so much of any moneys for the time being forming part of a sinking fund as shall be available for the repayment of—

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Order.

Power to use
sinking fund
instead of
borrowing.

(a) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(b) moneys borrowed and charged upon all the revenues of the Corporation in manner provided by Article 6 of this Order and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(a) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the use of moneys from such sinking fund;

(b) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(c) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Minister with regard to the exercise of the powers contained in this Article as he shall require.

11. Nothing in this Order shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of this Order except with the consent of such mortgagee.

Saving for
existing
lenders.

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Worcester
Order.
Power to
re-borrow.

12.—(1) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Return to
Minister of
Health with
respect to
repayment
of debt.

13.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation in pursuance of any statutory borrowing power and not raised by the issue of stock.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make or verify such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making and verifying

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of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

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—
*Worcester
Order.*

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

14.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary with reference to the purposes of this Order and such inspectors shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

Inquiries
and
expenses.

(2) Where the Minister causes any such inquiry as aforesaid to be held the costs incurred by the Ministry in relation to that inquiry (including such sum not exceeding five guineas a day as the Minister may determine for the services of any inspector or officer of the Ministry engaged in the inquiry) shall be paid by the Corporation and the Minister may certify the amount of the costs so incurred and any sum so certified and directed by the Minister to be paid by the Corporation shall be a debt due to the Crown from the Corporation.

15. Nothing in this Order contained shall affect prejudice or lessen any of the rights and privileges of the Corporation under any Royal Charter heretofore granted to the Corporation or their predecessors.

Saving for
Charter
rights &c.

16. This Order may be cited as the Worcester Order 1925.

Short title.

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Order.*

SCHEDULES.

FIRST SCHEDULE.

MAXIMUM TOLLS PAYABLE BY SELLERS.

PART I.

	£	s.	d.
For every stallion - - - - -	0	2	6
For every horse mare or gelding - - - - -	0	1	0
For every foal - - - - -	0	0	6
For every bull ox steer cow or heifer - - - - -	0	0	6
For every cow and calf - - - - -	0	0	8
For every calf - - - - -	0	0	3
For every mule or ass - - - - -	0	0	6
For every sheep or lamb or goat - - - - -	0	0	2
For every pig or hog (other than a sucking pig) - - - - -	0	0	2
For every sucking pig - - - - -	0	0	1
For every beast tied up - - - - -	0	0	4
For every animal not removed within one hour after the close of the market for every hour or part of an hour after the first hour - - - - -	0	1	0

The above mentioned tolls to be payable in respect of every animal brought or driven into the market whether or not it is offered or exposed for sale or exhibited and whether it is actually sold or not.

PART II.

POULTRY AND OTHER LIVE STOCK.

Fowl or duck - - - - -	$\frac{1}{2}d.$ each.
Chicken or duckling (without hen) - - - - -	$\frac{1}{2}d.$ „
Chickens and ducklings (with hen) - - - - -	3d. per dozen.
Goose or gosling - - - - -	1d. each.
Rabbit or guinea pig - - - - -	$\frac{1}{2}d.$ „
Turkey - - - - -	1d. „
Ferret or dog - - - - -	1d. „

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CARTS IMPLEMENTS AND MISCELLANEOUS ARTICLES.

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Order.*

Cart or wagon	-	-	-	-	-	6d. per wheel.
Harness	-	-	-	-	-	3d. to 1s. per set (according to quality).
Agricultural implements	-	-	-	-	-	4½d. in the £ up to £10 on the price realised.
Motor cars motor lorries motor bicycles and side cars	-	-	-	-	-	
Poultry houses and appliances	-	-	-	-	-	3d. in the £ over £10 on the price realised.
Dairy utensils and requisites	-	-	-	-	-	
Potatoes and any other consumable articles	-	-	-	-	-	If not sold 50 per cent. reduction on value.

SECOND SCHEDULE.

FORM OF MORTGAGE.

City of Worcester.

By virtue of the Worcester Order 1925 as confirmed by Parliament and of other their powers in that behalf them enabling the mayor aldermen and citizens of the city of Worcester (hereinafter referred to as "the Corporation") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the city by _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the Worcester Order 1925 defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ One thousand nine hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the Guildhall in the said city [(subject as hereinafter provided) on the _____ day of _____ One thousand nine hundred and _____ or (if not demanded on that date) at any time thereafter on the

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A.D. 1925. expiration of six calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by _____]:

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Order.

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the mayor and town clerk of the city for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this _____ day of _____ One thousand nine hundred and _____

The Endorsement within referred to.

The within-named _____ consenting the
within-mentioned time for repayment of the within-mentioned
principal sum of _____ is hereby extended to
the _____ day of _____ One thousand nine
hundred and _____ [and the interest to be paid
thereon on and from the _____ day of _____ One
thousand nine hundred and _____ is hereby declared to
be at the rate of _____ per centum per annum].

Dated this day of One thousand
 nine hundred and :

Form of Transfer of Mortgage.

I [the within-named]
[of] in consideration of the sum of
pounds paid to me by of
(hereinafter referred to as the "trans-
feree") do hereby transfer to the transferee [his] executors
administrators and assigns [the within-written security] [the
mortgage number of the revenues of the mayor aldermen
and citizens of the city of Worcester bearing date the day
of] and all my estate right and interest under the

[15 & 16 GEO. 5.] *Ministry of Health* [Ch. lxxxiii.]
Provisional Orders Confirmation (No. 7) Act, 1925.

same subject to the several conditions on which I hold the same
at the time of the execution hereof and I the transferee for myself
my executors administrators and assigns do hereby agree to take
the said mortgage security subject to the same conditions.

A.D. 1925.

—
Worcester
Order.

Dated this day of One thousand
nine hundred and .

Given under the Official Seal of the Minister of Health
this Twenty-eighth day of April One thousand nine
hundred and twenty-five.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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FOR

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